



MELINDA E. BARRETT
MAYOR

CITY OF HAVERHILL
MASSACHUSETTS

CITY HALL, ROOM 100
FOUR SUMMER STREET
HAVERHILL, MA 01830
PHONE 978-374-2300
FAX 978-373-7544
MAYOR@HAVERHILLMA.GOV
WWW.HAVERHILLMA.GOV

May 29, 2026

6/16/26
Council mtg.
Ref to NRPP

To: City Council President Timothy J. Jordan and Members of the
Haverhill City Council

From: Mayor Melinda E. Barrett

Re: Ordinance Amending Chapter 191, Article IV Relating to Fixed
Location Vendors

Dear Mr. President and Members of the City Council:

Councilor Devan Ferreira and I respectfully submit for discussion and consideration the attached Ordinance to amend Chapter 191, Article IV of the City Code regarding fixed location vendors.

Thank you,

Very truly yours,

Melinda E. Barrett
Mayor



Document

CITY OF HAVERHILL

In Municipal Council

MAY 29 AM 8:24
HVCITYCLERK

Ordered:

MUNICIPAL ORDINANCE

CHAPTER 191

AN ORDINANCE AMENDING ARTICLE IV
RELATING TO FIXED LOCATION VENDORS

BE IT ORDAINED by the City Council of the City of Haverhill that Chapter 191, Article IV Peddlers and Hawkers, Transient Vendors and Fixed Location Vendors of the Code of the City of Haverhill, as amended, being and is hereby further amended as follows:

§ 191-8. Definitions.

The following words shall for the purposes of this article have the following meanings, unless the context requires otherwise:

FIXED LOCATION VENDOR

Any person who, for himself or for another person, engages in the sale of goods, wares, merchandise, food or beverages at a fixed location which is carried on in any fixed or mobile cart, wagon or tables. The term shall not include bona fide nonprofit, civic, charitable, or youth organizations conducting occasional fundraising sales or events not operated as a continuous commercial vending activity.

HAWKER or PEDDLER

Any person who, for himself or for another person, travels by foot, automobile or any other type of conveyance from place to place, from house to house, or from street to street, taking or attempting to lease or take orders for retail sale of goods, wares, merchandise, or services. This shall include persons engaged in door-to-door sale for future delivery as defined by MGL c. 101, § 34.

SEASONAL PRODUCTS

Christmas trees, wreaths, baskets, blooming plants and cut flowers.

TRANSIENT VENDOR

Any person who, for himself or for another person, who engages in a temporary or transient business in the commonwealth selling goods, wares or merchandise, either in one locality or in traveling from place to place. Temporary or transient business shall mean any

exhibition and sale of goods, wares or merchandise which is carried on in any tent, booth, building or other structure, unless such place is open for business during usual business hours for a period of at least 12 consecutive months.

§ 191-9 Licenses.

It shall be unlawful for any person, firm or corporation to engage in the business of hawker/peddler without first having secured a state license or a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor without first having secured a state license and a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of fixed location vendor without first having secured a license from the City.

- A. Application. Applications for permission to use City property or to sell on City streets, sidewalks, public ways or in any public space shall be made to the City Clerk and shall be subject to the approval of the City Council. Applications shall state thereon the kind of merchandise to be sold, the proposed location of the business, the dates and times of operation and the permanent address and telephone number of the vendor, **and, in the case of any fixed-location vendor selling food or beverage items, a detailed menu or list of all proposed food and beverage items to be sold, including any proposed substitutions or seasonal variations.**
- B. Fee. The fee for a hawker/peddler license shall be \$62, unless the applicant has a state license in which case there shall be no fee. The fee for a transient vendor or a fixed location vendor shall be \$100 for a period of less than 30 days or \$300 for a period exceeding 30 days.
- C. Prior approvals. Before such a permit is issued, approval shall be obtained from the Chief of Police (registration and traffic safety, etc.); Building Inspector (signs, zoning, regulations, etc.); Wiring Inspector (lights, etc.); Recreation Director (use of Riverside Park and area in front of or on the side of Haverhill Stadium); Fire Inspector; and Health Department (food or beverage sales).
- D. Hours of operation. No sales activity shall be allowed before 9:00 a.m. and after 9:00 p.m. without the prior permission of the City Council.
- E. The sale of silly string or similar type goods or snap caps and stink bombs or similar explosives or any facsimile cigarettes during a parade or public event in the City of Haverhill is prohibited.
- F. A permit to sell may only be used by the person whose name appears on the City license, unless an employee is working under a licensed vendor and obtains a separate employee license. The fee for such an employee license shall be \$25, and the employee license shall run with the term of the licensed vendor.
- G. No transient vendor or fixed location vendor license shall be issued without the applicant indemnifying the City of Haverhill from any and all claims arising out of the maintenance of such a location and by placing on file a sidewalk obstruction bond in the amount of \$5,000 as

set forth in § 222-46 of this Code.

- H. All permits issued under this section may be effective for up to one year, commencing on January 1 and with an expiration date of December 31 of the year in which the permit is granted. Any license which is not renewed for the upcoming year by December 1 of the prior year may be subject to reassignment in accordance with the provisions of § 191-11B.
- I. Any person, firm or corporation engaging in the business of hawker/peddler within the City of Haverhill who is operating on the basis of a state license solely shall register with the Chief of Police at least 24 hours prior to conducting business and shall provide the kind of merchandise to be sold, the proposed areas and locations in which they will engage in their business, the dates and times of operation, the permanent address and telephone number of the vendor, and a copy of a valid state hawker/peddler license.
- J. Door-to-door sales.
 - (1) Any person, firm or corporation engaging in the business of door-to-door sales for future delivery shall comply with all provisions of M.G.L. c. 101, § 34. The Chief of Police shall be the designated official for the registration required by M.G.L. c. 101, § 34. The Chief of Police may make reasonable rules and regulations for such registrations and persons engaged in the business of door-to-door sales consistent with M.G.L. c. 101, § 34. A registration fee of \$100 shall be paid to the Police Department for each person so registered.
 - (2) Signs prohibiting solicitation; trespass.
 - (a) It shall be unlawful for any salesperson to enter the premises or remain on property displaying a "No Trespassing" or "No Solicitation" sign.
 - (b) It shall be unlawful for any salesperson to ignore a no-solicitation directive or remain on private property after a resident or resident's representative has indicated that the salesperson is not welcome.
 - (3) Do Not Knock Registry.
 - (a) The Police Department shall prepare a list of addresses of those premises where the owner and/or occupant has notified the Chief of Police, or his designee, that a door-to-door salesperson, hawker, peddler or any other person, including corporate or business entities, wishing to sell wares or services in all districts, in locations which are not stationary, are not permitted on the premises (hereinafter referred to as the "Do Not Knock Registry"). Notification shall be by completion of a form available at the Police Department.
 - (b) The Chief of Police or designee shall distribute the current Do Not Knock Registry to a person or entity licensed under this section at the time of issuance of the license. The licensee shall not peddle, canvass, or conduct door-to-door

sales at any premises identified on the then current Do Not Knock Registry.

- (4) Exemptions. The above provisions shall not apply to any person who goes door to door for the purpose of advocating any religious, political, social or other position or belief protected by the federal or state constitution, the sale or delivery of newspapers, any corporation organized for charitable purposes, such as schools or the Boy/Girl Scouts, and candidates for public office.
- (5) Penalties. Any canvasser, peddler, itinerant vender or owner or employee of a door-to-door sales enterprise who violates any provision of this section shall be:
- (6) Subject to a fine of \$300 per offense; and/or
- (7) Subject to a one-year revocation of any license issued by the Chief of Police.

§ 191-10 Seasonal products; fee.

It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor or fixed location vendor for the sale of seasonal products without first having secured a City license pursuant to the requirements of § 191-9. The fee for a license to sell seasonal products shall be \$200.

§ 191-11. Permitted fixed locations; exceptions.

A. Permitted locations. Selling within the City of Haverhill of products licensed under § 191-9 by fixed-location vendors shall only be permitted within the boundaries of these the following areas; provided, however, that at any location where more than one vendor is authorized, no two vendors shall principally sell the same primary product or food item.

- (1) Winnekenni area, Route 110: one vendor.
- (2) Bradford Common: one vendor.*
- (3) Riverside Park: ~~one vendor.~~ four vendors.
- (4) Washington Square: one vendor.
- (5) GAR Park: ~~one vendor.~~ two vendors.
- (6) Swasey Park: ~~one vendor.~~ two vendors.
- (7) Outside Haverhill Stadium at Lincoln and Nettleton Avenues: ~~one vendor.~~ two vendors.
- (8) Riverfront Park: one vendor, provided, however, that no food trucks shall be permitted as provided in § 191-30, and that any vendor operating at Riverfront Park

shall not principally sell food or beverage items that are substantially similar to the primary menu offerings of existing fixed-location food service establishments located within the Central Business District, as defined by § 11-70 of this Code.

(9) Plug Pond: one vendor.

~~(8)~~ (10) Other areas as approved by the City Council.

* An enclosed cart 8.5 x 12 feet, excluding hitch, is allowed at the Bradford site only. Any party desiring a similar type of cart at any other location must petition the City Council for permission

B. Vacated locations. Persons who wish to be considered for a permit for one of the above locations, when vacated, may notify the City Clerk, who shall maintain a waiting list, including the person's name, address and a date of receipt. Interested parties shall be notified when a location is vacated and shall have 30 days to apply for issuance of a permit. If more than one person applies for a particular site, preference shall be given to the earliest qualified applicant, as determined by the City Council date stamp of the application received by the City Clerk. If no person has applied for a permit within 30 days or if there are no persons on the waiting list, the location shall be granted to the earliest qualified applicant, if the City Council so determines. The waiting list must be renewed every two years, with those applicants on the list to be notified by the City Clerk by regular U.S. mail to renew the application by November 1. Persons may be permitted for more than one location if allowed by the City Council. Any person with a valid permit who fails to operate his/her location for a period of less than four days per calendar week, Sunday through Saturday, weather permitting, from Memorial Day through Labor Day, may have said permit be subject to revocation by the City Council, after notice and hearing.

C. Exceptions. The following areas shall not be permitted to have any type of selling by either a transient vendor or hawker/peddler:

(1) All municipal parking areas.

~~(2)~~ Plug Pond.

~~(3)~~ (2) Meadowbrook Conservation Area.

~~(4)~~ (3) Within 300 feet of any public school building, notwithstanding the provisions of § 191-2.

~~(5)~~ (4) Within 25 feet of any parade route commencing 1/2 hour prior to the start of said parade, except for those permitted to sell in accordance with § 191-12.

(D) Compliance with City Clerk Regulations. All approved vendors shall comply with all rules, regulations, permitting requirements, and mapping locations as established by the City Clerk's Office relating to fixed-location vendors, as the same may be amended from

time to time.

§ 191-12 Special events.

- A. Fixed location vendors shall also be permitted to operate during special events, provided that a notification of intent to operate during the special event is filed with the event director or committee at least 30 days prior to said special event and the event director or committee approves the specific location. The event director or committee shall not unreasonably withhold approval for operation during a special event; however, the event director or committee shall have exclusive jurisdiction over the assigned specific location at which any person(s) may operate.[1]

§ 191-13 Fraud; violations and penalties.

- A. Fraud. Any licensed transient vendor or peddler or hawker who shall be guilty of any fraud, cheating or misrepresentation, whether through himself or through an employee, while acting in the City, or who shall barter, sell or peddle any goods or merchandise or wares other than those specified in his application for a license or who shall fail to comply with the conditions and restrictions contained herein shall be deemed guilty of a violation of this article.
- B. Penalty. Any person, firm or corporation violating any provision of this article shall be fined not less than \$50 nor more than \$250 for each offense, and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues.



Document
CITY OF HAVERHILL
In Municipal Council

Ordered:

MUNICIPAL ORDINANCE

CHAPTER 191

**AN ORDINANCE AMENDING ARTICLE IV
RELATING TO FIXED LOCATION VENDORS**

BE IT ORDAINED by the City Council of the City of Haverhill that Chapter 191, Article IV Peddlers and Hawkers, Transient Vendors and Fixed Location Vendors of the Code of the City of Haverhill, as amended, being and is hereby further amended as follows:

§ 191-8. Definitions.

The following words shall for the purposes of this article have the following meanings, unless the context requires otherwise:

FIXED LOCATION VENDOR

Any person who, for himself or for another person, engages in the sale of goods, wares, merchandise, food or beverages at a fixed location which is carried on in any fixed or mobile cart, wagon or tables. The term shall not include bona fide nonprofit, civic, charitable, or youth organizations conducting occasional fundraising sales or events not operated as a continuous commercial vending activity.

HAWKER or PEDDLER

Any person who, for himself or for another person, travels by foot, automobile or any other type of conveyance from place to place, from house to house, or from street to street, taking or attempting to lease or take orders for retail sale of goods, wares, merchandise, or services. This shall include persons engaged in door-to-door sale for future delivery as defined by MGL c. 101, § 34.

SEASONAL PRODUCTS

Christmas trees, wreaths, baskets, blooming plants and cut flowers.

TRANSIENT VENDOR

Any person who, for himself or for another person, who engages in a temporary or transient business in the commonwealth selling goods, wares or merchandise, either in one locality or in traveling from place to place. Temporary or transient business shall mean any

exhibition and sale of goods, wares or merchandise which is carried on in any tent, booth, building or other structure, unless such place is open for business during usual business hours for a period of at least 12 consecutive months.

§ 191-9 Licenses.

It shall be unlawful for any person, firm or corporation to engage in the business of hawker/peddler without first having secured a state license or a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor without first having secured a state license and a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of fixed location vendor without first having secured a license from the City.

- A. Application. Applications for permission to use City property or to sell on City streets, sidewalks, public ways or in any public space shall be made to the City Clerk and shall be subject to the approval of the City Council. Applications shall state thereon the kind of merchandise to be sold, the proposed location of the business, the dates and times of operation and the permanent address and telephone number of the vendor, and, in the case of any fixed-location vendor selling food or beverage items, a detailed menu or list of all proposed food and beverage items to be sold, including any proposed substitutions or seasonal variations.
- B. Fee. The fee for a hawker/peddler license shall be \$62, unless the applicant has a state license in which case there shall be no fee. The fee for a transient vendor or a fixed location vendor shall be \$100 for a period of less than 30 days or \$300 for a period exceeding 30 days.
- C. Prior approvals. Before such a permit is issued, approval shall be obtained from the Chief of Police (registration and traffic safety, etc.); Building Inspector (signs, zoning, regulations, etc.); Wiring Inspector (lights, etc.); Recreation Director (use of Riverside Park and area in front of or on the side of Haverhill Stadium); Fire Inspector; and Health Department (food or beverage sales).
- D. Hours of operation. No sales activity shall be allowed before 9:00 a.m. and after 9:00 p.m. without the prior permission of the City Council.
- E. The sale of silly string or similar type goods or snap caps and stink bombs or similar explosives or any facsimile cigarettes during a parade or public event in the City of Haverhill is prohibited.
- F. A permit to sell may only be used by the person whose name appears on the City license, unless an employee is working under a licensed vendor and obtains a separate employee license. The fee for such an employee license shall be \$25, and the employee license shall run with the term of the licensed vendor.
- G. No transient vendor or fixed location vendor license shall be issued without the applicant indemnifying the City of Haverhill from any and all claims arising out of the maintenance of such a location and by placing on file a sidewalk obstruction bond in the amount of \$5,000 as set forth in § 222-46 of this Code.

- H. All permits issued under this section may be effective for up to one year, commencing on January 1 and with an expiration date of December 31 of the year in which the permit is granted. Any license which is not renewed for the upcoming year by December 1 of the prior year may be subject to reassignment in accordance with the provisions of § 191-11B.
- I. Any person, firm or corporation engaging in the business of hawker/peddler within the City of Haverhill who is operating on the basis of a state license solely shall register with the Chief of Police at least 24 hours prior to conducting business and shall provide the kind of merchandise to be sold, the proposed areas and locations in which they will engage in their business, the dates and times of operation, the permanent address and telephone number of the vendor, and a copy of a valid state hawker/peddler license.
- J. Door-to-door sales.
- (1) Any person, firm or corporation engaging in the business of door-to-door sales for future delivery shall comply with all provisions of M.G.L. c. 101, § 34. The Chief of Police shall be the designated official for the registration required by M.G.L. c. 101, § 34. The Chief of Police may make reasonable rules and regulations for such registrations and persons engaged in the business of door-to-door sales consistent with M.G.L. c. 101, § 34. A registration fee of \$100 shall be paid to the Police Department for each person so registered.
 - (2) Signs prohibiting solicitation; trespass.
 - (a) It shall be unlawful for any salesperson to enter the premises or remain on property displaying a "No Trespassing" or "No Solicitation" sign.
 - (b) It shall be unlawful for any salesperson to ignore a no-solicitation directive or remain on private property after a resident or resident's representative has indicated that the salesperson is not welcome.
 - (3) Do Not Knock Registry.
 - (a) The Police Department shall prepare a list of addresses of those premises where the owner and/or occupant has notified the Chief of Police, or his designee, that a door-to-door salesperson, hawker, peddler or any other person, including corporate or business entities, wishing to sell wares or services in all districts, in locations which are not stationary, are not permitted on the premises (hereinafter referred to as the "Do Not Knock Registry"). Notification shall be by completion of a form available at the Police Department.
 - (b) The Chief of Police or designee shall distribute the current Do Not Knock Registry to a person or entity licensed under this section at the time of issuance of the license. The licensee shall not peddle, canvass, or conduct door-to-door sales at any premises identified on the then current Do Not Knock Registry.

- (4) Exemptions. The above provisions shall not apply to any person who goes door to door for the purpose of advocating any religious, political, social or other position or belief protected by the federal or state constitution, the sale or delivery of newspapers, any corporation organized for charitable purposes, such as schools or the Boy/Girl Scouts, and candidates for public office.
- (5) Penalties. Any canvasser, peddler, itinerant vender or owner or employee of a door-to-door sales enterprise who violates any provision of this section shall be:
- (6) Subject to a fine of \$300 per offense; and/or
- (7) Subject to a one-year revocation of any license issued by the Chief of Police.

§ 191-10 Seasonal products; fee.

It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor or fixed location vendor for the sale of seasonal products without first having secured a City license pursuant to the requirements of § 191-9. The fee for a license to sell seasonal products shall be \$200.

§ 191-11. Permitted fixed locations; exceptions.

A. Permitted locations. Selling within the City of Haverhill of products licensed under § 191-9 by fixed-location vendors shall only be permitted within the boundaries of the following areas; provided, however, that at any location where more than one vendor is authorized, no two vendors shall principally sell the same primary product or food item.

- (1) Winnekenni area, Route 110: one vendor.
- (2) Bradford Common: one vendor.*
- (3) Riverside Park: four vendors.
- (4) Washington Square: one vendor.
- (5) GAR Park: two vendors.
- (6) Swasey Park: two vendors.
- (7) Outside Haverhill Stadium at Lincoln and Nettleton Avenues: two vendors.
- (8) Riverfront Park: one vendor, provided, however, that no food trucks shall be permitted as provided in § 191-30, and that any vendor operating at Riverfront Park shall not principally sell food or beverage items that are substantially similar to the primary menu offerings of existing fixed-location food service establishments located

within the Central Business District, as defined by § 11-70 of this Code.

(9) Plug Pond: one vendor.

(10) Other areas as approved by the City Council.

* An enclosed cart 8.5 x 12 feet, excluding hitch, is allowed at the Bradford site only. Any party desiring a similar type of cart at any other location must petition the City Council for permission

B. Vacated locations. Persons who wish to be considered for a permit for one of the above locations, when vacated, may notify the City Clerk, who shall maintain a waiting list, including the person's name, address and a date of receipt. Interested parties shall be notified when a location is vacated and shall have 30 days to apply for issuance of a permit. If more than one person applies for a particular site, preference shall be given to the earliest qualified applicant, as determined by the date stamp of the application received by the City Clerk. If no person has applied for a permit within 30 days or if there are no persons on the waiting list, the location shall be granted to the earliest qualified applicant, if the City Council so determines. The waiting list must be renewed every year, with those applicants on the list to be notified by the City Clerk by regular U.S. mail to renew the application by November 1. Persons may be permitted for more than one location if allowed by the City Council. Any person with a valid permit who fails to operate his/her location for a period of less than four days per calendar week, Sunday through Saturday, weather permitting, from Memorial Day through Labor Day, may have said permit be subject to revocation by the City Council, after notice and hearing.

C. Exceptions. The following areas shall not be permitted to have any type of selling by either a transient vendor or hawker/peddler:

(1) All municipal parking areas.

(2) Meadowbrook Conservation Area.

(3) Within 300 feet of any public school building, notwithstanding the provisions of § 191-2.

(4) Within 25 feet of any parade route commencing 1/2 hour prior to the start of said parade, except for those permitted to sell in accordance with § 191-12.

(D) Compliance with City Clerk Regulations. All approved vendors shall comply with all rules, regulations, permitting requirements, and mapping locations as established by the City Clerk's Office relating to fixed-location vendors, as the same may be amended from time to time.

§ 191-12 Special events.

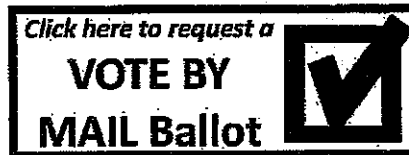
A. Fixed location vendors shall also be permitted to operate during special events, provided that a notification of intent to operate during the special event is filed with the event director

or committee at least 30 days prior to said special event and the event director or committee approves the specific location. The event director or committee shall not unreasonably withhold approval for operation during a special event; however, the event director or committee shall have exclusive jurisdiction over the assigned specific location at which any person(s) may operate.[1]

§ 191-13 Fraud; violations and penalties.

- A. Fraud. Any licensed transient vendor or peddler or hawker who shall be guilty of any fraud, cheating or misrepresentation, whether through himself or through an employee, while acting in the City, or who shall barter, sell or peddle any goods or merchandise or wares other than those specified in his application for a license or who shall fail to comply with the conditions and restrictions contained herein shall be deemed guilty of a violation of this article.
- B. Penalty. Any person, firm or corporation violating any provision of this article shall be fined not less than \$50 nor more than \$250 for each offense, and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues.

STATE PRIMARY ELECTION	VOTER REGISTRATION DEADLINE	EARLY VOTING PERIOD	LAST DAY TO REQUEST VOTE BY MAIL BALLOT
September 1, 2026	August 22, 2026	August 22 – August 28, 2026	August 25, 2026



[Check your Massachusetts Voter Registration Status!](#)

From: Devan Ferreira <DFerreira@haverhillma.gov>

Sent: Monday, April 20, 2026 5:40 PM

To: Jacki Byerley <JByerley@HaverhillMa.gov>; Kaitlin Wright <kwright@haverhillma.gov>

Subject: Fixed location vendors draft

Hi!

Attached is my very quick draft of changes to the fixed location vendor ordinance-my suggestions are in purple italics, with a few questions at the end, mostly so I didn't forget to ask Lisa Mead...When I met with her she said just to mark up the existing ordinance and get it back to her, and she would work out the wording.

Let me know what you think?

Devan

Get [Outlook for iOS](#)

Proposed changes to sec. 191-11 Permitted fixed locations; exceptions

Added 7-13-1993 by Doc. 87; amended 5-16-1995 by Doc. 88; 4-20-1999 by Doc. 64; 11-9-2004 by Doc. 146; 12-7-2004 by Doc. 155]

A. Permitted locations. Selling within the City of Haverhill of products licensed under § 191-9 by fixed-location vendors shall only be permitted within the boundaries of these areas:

[Amended 10-5-2010 by Doc. 104; 3-22-2011 by Doc. 29]

- (1) Winnekenni area, Route 110: one vendor. *Add one vendor inside park*
- (2) Bradford Common: one vendor.*
- (3) Riverside Park: one vendor. *Four vendors, each selling different items*
- (4) Washington Square: one vendor.
- (5) GAR Park: one vendor. *Two vendors, each selling different items*
- (6) Swasey Park: one vendor. *Two vendors, each selling different items*
- (7) Outside Haverhill Stadium at Lincoln and Nettleton Avenues: one vendor *Two vendors, each selling different items*
- (8) Other areas as approved by the City Council. *Add one vendor at Riverfront Park, one vendor at Plug Pond*

* An enclosed cart 8.5 x 12 feet, excluding hitch, is allowed at the Bradford site only. Any party desiring a similar type of cart at any other location must petition the City Council for permission

B. Vacated locations. Persons who wish to be considered for a permit for one of the above locations, when vacated, may notify the City Clerk, who shall maintain a waiting list, including the person's name, address and a date of receipt. Interested parties shall be notified when a location is vacated and shall have 30 days to apply for issuance of a permit. If more than one person applies for a particular site, preference shall be given to the earliest qualified applicant, as determined by the City Council. If no person has applied for a permit within 30 days or if there are no persons on the waiting list, the location shall be granted to the earliest qualified applicant, if the City Council so determines. The waiting list must be renewed every two years, with those applicants on the list to be notified by the City Clerk by regular U.S. mail to renew the application by November 1. Persons may be permitted for more than one location if allowed by the City Council. Any person with a valid permit who fails to operate his/her location for a period of less than four days per calendar week, Sunday through Saturday, weather permitting, from Memorial Day through Labor Day, may have said permit be subject to revocation by the City Council, after notice and hearing.

[Amended 10-5-2010 by Doc. 104; 3-22-2011 by Doc. 29]

C. Exceptions. The following areas shall not be permitted to have any type of selling by either a transient vendor or hawker/peddler:

- (1) All municipal parking areas.
- (2) Plug Pond. *Remove*
- (3) Meadowbrook Conservation Area.
- (4) Within 300 feet of any public school building, notwithstanding the provisions of § 191-2.
- (5) Within 25 feet of any parade route commencing 1/2 hour prior to the start of said parade, except for those permitted to sell in accordance with § 191-12.

Solicitor Mead suggested including wording that permitted vendors are subject to regulations for fixed sites-this is where we would include a map or specifics for where vendors can be located; regulations don't need to be included here?

In section 191-8 under definitions: do we need to clarify if non-profit organizations selling as fundraising is the same as a fixed location vendor (I.e.- riverside-Bradford baseball as fixed vendor at Riverside Park) Does a fundraising vendor take the spot of a permitted fixed location vendor?

City Clerk

4 Summer Street, Room 118

Office: (978) 374-2312

Fax: (978) 373-8490

kwright@haverhillma.gov



VERIFY YOUR VOTER STATUS HERE: <https://www.sec.state.ma.us/ovr/>

STATE PRIMARY ELECTION	VOTER REGISTRATION DEADLINE	EARLY VOTING PERIOD	LAST DAY TO REQUEST VOTE BY MAIL BALLOT
September 1, 2026	August 22, 2026	August 22 – August 28, 2026	August 25, 2026



**MASSACHUSETTS
REGISTER
TO VOTE
ONLINE**

Click here to request a

**VOTE BY
MAIL Ballot**



[Check your Massachusetts Voter Registration Status!](#)

From: Jacki Byerley <JByerley@HaverhillMa.gov>

Sent: Tuesday, April 21, 2026 11:12 AM

To: Devan Ferreira <DFerreira@haverhillma.gov>; Kaitlin Wright <kwright@haverhillma.gov>

Subject: RE: Fixed location vendors draft

I have a concern on the phrasing of "each selling different items" would that mean only 1 could sell bottles of water or soda? It may need to be reworded that with a phrase something like this, and could be placed as an asterisk or a footnote:

"Each food vendor must feature a distinct primary menu item as their main offering; however, vendors may offer overlapping secondary items such as beverages or complementary sides."

From: Devan Ferreira <DFerreira@haverhillma.gov>

Sent: Tuesday, April 21, 2026 10:24 AM

To: Kaitlin Wright <kwright@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>

Subject: Re: Fixed location vendors draft

Thanks! I think if in the regulations we stipulate size of carts, etc and their locations that may help with congestion/traffic concerns? Most folks who stop at Lisa's dogs at the stadium park in that parking lot

right there, and swasey is mostly foot traffic and on street parking. I assumed the vendors for swasey would be located inside the park?

Have a great day!
Devan

she/her

City Councilor for Haverhill's Ward 3
(401)499-3583

From: Kaitlin Wright <kwright@haverhillma.gov>
Sent: Tuesday, April 21, 2026 10:14:26 AM
To: Devan Ferreira <DFerreira@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>
Subject: RE: Fixed location vendors draft

Hi Devan,

I think the suggestion of added vendors to certain locations are fine – but my only concern would be about parking. I don't view it as an issue for places like Winnekenni, Riverside Park, or GAR Park, but I do think that increases vendors at Swasey Park and Nettleton Ave may cause added congestion to the area. I am not super familiar with the parking at Swasey Park, but we would need to anticipate that both vendors may take up a parking spot each or make a stipulation for one vendor that they have a cart of a certain size. We may want to consider adding the size requirements to Washington Square, as well, as it can't accommodate a large mobile vendor.

All my best,

Kaitlin

Kaitlin M. Wright, CMC
City Clerk
4 Summer Street, Room 118
Office: (978) 374-2312
Fax: (978) 373-8490
kwright@haverhillma.gov



VERIFY YOUR VOTER STATUS HERE: <https://www.sec.state.ma.us/ovr/>

To: Devan Ferreira <DFerreira@haverhillma.gov>; Kaitlin Wright <kwright@haverhillma.gov>
Subject: RE: Fixed location vendors draft

Hi Devan,

Is there an updated draft with the comments made that you want to send to Lisa Mead?

From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Friday, April 24, 2026 11:29 AM
To: Kaitlin Wright <kwright@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>
Subject: Re: Fixed location vendors draft

Happy Friday! Is this very basic draft of changes ok enough to send on to Lisa Mead?

Devan

she/her

City Councilor for Haverhill's Ward 3
(401)499-3583

From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Tuesday, April 21, 2026 11:48:37 AM
To: Kaitlin Wright <kwright@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>
Subject: Re: Fixed location vendors draft

Makes sense to me too-just wanted to get the essence of what we want in the ordinance so Solicitor can finesse!

Devan

she/her

City Councilor for Haverhill's Ward 3
(401)499-3583

From: Kaitlin Wright <kwright@haverhillma.gov>
Sent: Tuesday, April 21, 2026 11:19:54 AM
To: Jacki Byerley <JByerley@HaverhillMa.gov>; Devan Ferreira <DFerreira@haverhillma.gov>
Subject: RE: Fixed location vendors draft

I think your correction makes sense, Jacki!

All my best,

Kaitlin

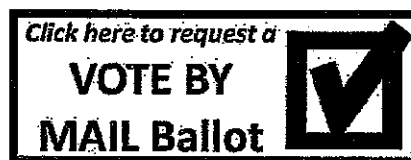
Kaitlin M. Wright, CMC

Office: (978) 374-2312
Fax: (978) 373-8490
kwright@haverhillma.gov



VERIFY YOUR VOTER STATUS HERE: <https://www.sec.state.ma.us/ovr/>

STATE PRIMARY ELECTION	VOTER REGISTRATION DEADLINE	EARLY VOTING PERIOD	LAST DAY TO REQUEST VOTE BY MAIL BALLOT
September 1, 2026	August 22, 2026	August 22 - August 28, 2026	August 25, 2026



Check your Massachusetts Voter Registration Status!

From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Monday, April 27, 2026 9:08 AM
To: Jacki Byerley <JByerley@HaverhillMa.gov>; Kaitlin Wright <kwright@haverhillma.gov>
Subject: Re: Fixed location vendors draft

Morning!

I can send the draft I initially sent to you to Lisa and include your suggestion of wording about not selling the same primary item?

If we can get the basics of what changes we need to Lisa, she said she can draft the changes pretty quickly...I'm planning to ask that she share her draft once finished again with us before taking it to council..

Devan

she/her

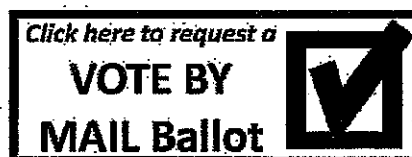
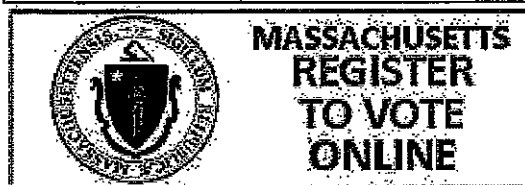
City Councilor for Haverhill's Ward 3
(401)499-3583

From: Jacki Byerley <JByerley@HaverhillMa.gov>
Sent: Monday, April 27, 2026 8:02:16 AM



VERIFY YOUR VOTER STATUS HERE: <https://www.sec.state.ma.us/ovr/>

STATE PRIMARY ELECTION	VOTER REGISTRATION DEADLINE	EARLY VOTING PERIOD	LAST DAY TO REQUEST VOTE BY MAIL BALLOT
September 1, 2026	August 22, 2026	August 22 – August 28, 2026	August 25, 2026



[Check your Massachusetts Voter Registration Status!](#)

From: Jacki Byerley <JByerley@HaverhillMa.gov>
Sent: Monday, April 27, 2026 9:38 AM
To: Kaitlin Wright <kwright@haverhillma.gov>; Devan Ferreira <DFerreira@haverhillma.gov>
Subject: RE: Fixed location vendors draft

Before taking it to council can this go to departments for review to make sure it doesn't trigger any concerns they may with adding vendors to locations?

From: Kaitlin Wright <kwright@haverhillma.gov>
Sent: Monday, April 27, 2026 9:14 AM
To: Devan Ferreira <DFerreira@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>
Subject: RE: Fixed location vendors draft

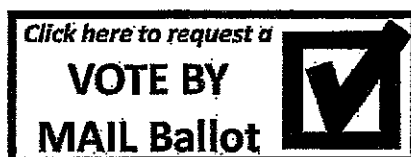
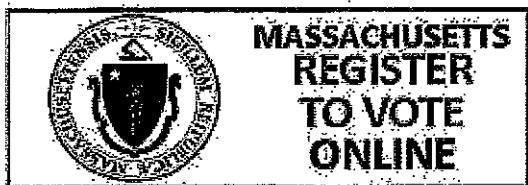
Devan,

Thanks for the update. That sounds good – please keep us in the loop.

All my best,

Kaitlin

Kaitlin M. Wright, CMC
City Clerk
4 Summer Street, Room 118



Check your Massachusetts Voter Registration Status!

From: Devan Ferreira <DFerreira@haverhillma.gov>

Sent: Monday, April 27, 2026 9:47 AM

To: Kaitlin Wright <kwright@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>

Subject: Re: Fixed location vendors draft

Is it appropriate to email the contacts for the departments that review to say we want to increase number of vendors and ask for feedback?

Devan

she/her

City Councilor for Haverhill's Ward 3
(401)499-3583

From: Kaitlin Wright <kwright@haverhillma.gov>

Sent: Monday, April 27, 2026 9:42:35 AM

To: Jacki Byerley <JByerley@HaverhillMa.gov>; Devan Ferreira <DFerreira@haverhillma.gov>

Subject: RE: Fixed location vendors draft

I think it would be wise to add in at least the departments that typically review these applications, which are PD, Health, and Recreation.

All my best,

Kaitlin

Kaitlin M. Wright, CMC

City Clerk

4 Summer Street, Room 118

Office: (978) 374-2312

Fax: (978) 373-8490

kwright@haverhillma.gov

Lori Robertson

From: Devan Ferreira
Sent: Tuesday, July 14, 2026 3:47 PM
To: Lori Robertson
Subject: Fw: Fixed location vendors draft

Can you print this whole thread for me?

Devan

Get [Outlook for iOS](#)

From: Kaitlin Wright <kwright@haverhillma.gov>
Sent: Monday, 27 April 2026 09:49:44
To: Devan Ferreira <DFerreira@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>
Subject: RE: Fixed location vendors draft

Yes, I think that would be fine. Typically, Mark Tolman is the reviewer for Health, Kevin Lynch for the PD, and Ben Delaware for recreation.

All my best,

Kaitlin

Kaitlin M. Wright, CMC

City Clerk

4 Summer Street, Room 118

Office: (978) 374-2312

Fax: (978) 373-8490

kwright@haverhillma.gov



VERIFY YOUR VOTER STATUS HERE: <https://www.sec.state.ma.us/ovr/>

STATE PRIMARY ELECTION	VOTER REGISTRATION DEADLINE	EARLY VOTING PERIOD	LAST DAY TO REQUEST VOTE BY MAIL BALLOT
September 1, 2026	August 22, 2026	August 22 – August 28, 2026	August 25, 2026

RE: Fixed location vendors

From: Ben Delaware <bdelaware@haverhillma.gov>

To: Devan Ferreira <DFerreira@haverhillma.gov>, Mark Tolman <mtolman@haverhillma.gov>, klynch <klynch@haverhillpolice.com>

Cc: Kaitlin Wright <kwright@haverhillma.gov>, Jacki Byerley <JByerley@HaverhillMa.gov>

Date: Wed, Apr 29, 2026, 10:32 AM

Good Morning!

First thing that comes to mind is Plug Pond. Applicants should be aware that the highest frequency of visitors is in the Summer when open for swimming. Exact opening/closing dates change based on HPS academic calendars. Also that there are set hours for the beach 10am-7pm.

Ben Delaware
Recreation Director
City of Haverhill
978-374-2388 x3938

From: Devan Ferreira <DFerreira@haverhillma.gov>

Sent: Tuesday, April 28, 2026 8:40 PM

To: Mark Tolman <mtolman@haverhillma.gov>; klynch <klynch@haverhillpolice.com>; Ben Delaware <bdelaware@haverhillma.gov>

Cc: Kaitlin Wright <kwright@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>

Subject: Fixed location vendors

Hi all,

I'm working with Jacki and Kaitlin to update the number of vendors allowed in our fixed locations-in our current ordinance, only 1 vendor is allowed at each of 6 locations.

I'd like to propose up to 4 vendors at Riverside, 2 at Outside Stadium/nettleton Ave, 2 at swazey, 2 at winnekenni (1 would be inside park), 2 at GAR Park, 1 at Bradford common.

Additionally, 1 vendor at Plug Pond and 1 vendor at Riverfront Park.

Please let us know if you have any specific concerns or thoughts about these proposed changes-I'm hoping to get a rough draft to Solicitor Mead soon so she can finesse it for City Council consideration.

Thank you!

Fw: Fixed location vendors

From: Bonnie Dufresne <bdufresne@haverhillma.gov>
To: Devan Ferreira <DFerreira@haverhillma.gov>
Cc: Richard MacDonald <rmacdonald@haverhillma.gov>
Date: Fri, May 1, 2026, 3:35 PM

Good Afternoon Devan

Mark forwarded your inquiry to me about increasing the number of vendors at the permitted fixed sites.

It was discussed amongst all of the Health Inspectors and other than the usual requirements to comply with the food codes, trash disposal, sanitation, etc. the only other recommendation was portable toilets at the sites that do not have on site facilities. Some of these carts/trucks are on site for 4-6 hours.

Other than that recommendation this office has no objections to increasing the number of vendors.

Bonnie Dufresne
Deputy Director

From: Mark Tolman <mtolman@haverhillma.gov>
Sent: Wednesday, April 29, 2026 8:04 AM
To: Bonnie Dufresne <bdufresne@haverhillma.gov>
Subject: Fw: Fixed location vendors

From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Tuesday, April 28, 2026 8:40 PM
To: Mark Tolman <mtolman@haverhillma.gov>; klynch <klynch@haverhillpolice.com>; Ben Delaware <bdelaware@haverhillma.gov>
Cc: Kaitlin Wright <kwright@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>
Subject: Fixed location vendors

Hi all,
I'm working with Jacki and Kaitlin to update the number of vendors allowed in our fixed locations-in our current ordinance, only 1 vendor is allowed at each of 6 locations.

I'd like to propose up to 4 vendors at Riverside, 2 at Outside Stadium/nettleton Ave, 2 at swazey, 2 at winnekenni (1 would be inside park), 2 at GAR Park, 1 at Bradford common.

Re: External Message Fw: Fixed location vendors

Lieutenant Kevin Lynch
Devan Ferreira
Mon, May 4, 2026, 9:08PM

Warning! External Email. Exercise caution when opening attachments or clicking on any links.
The PD has no opinion about this issue. If the city wishes to increase the numbers, we will support this.

R/

Lieutenant Kevin F. Lynch
OIC Late Night Shift Group A
Supervisor: Traffic & Safety Unit / School Resource Officers / Behavioral Response Unit
Haverhill Police Department
40 Bailey Blvd.
Haverhill, MA 01830
(978) 722-1530 (Office)
(978) 872-8992 (Cell)
klynch@haverhillpolice.com



DRE #012482



From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Monday, May 4, 2026 9:06 PM
To: Lieutenant Kevin Lynch <klynch@haverhillpolice.com>
Subject: External Message Fw: Fixed location vendors

CAUTION: This email originated from outside the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi again!

Looking for any feedback you may have regarding increasing the number of vendors at our fixed locations, as well as adding a couple more locations-please see the proposed changes below.

Let me know what you think!

Devan
she/her

City Councilor for Haverhill's Ward 3
(401)499-3583

From: Devan Ferreira <DFerreira@haverhillma.gov>

Sent: Tuesday, April 28, 2026 8:40 PM

To: Mark Tolman <mtolman@haverhillma.gov>; klynch <klynch@haverhillpolice.com>; Ben Delaware <bdelaware@haverhillma.gov>

Cc: Kaitlin Wright <kwright@haverhillma.gov>; Jacki Byerley <JByerley@HaverhillMa.gov>

Subject: Fixed location vendors

Hi all,

I'm working with Jacki and Kaitlin to update the number of vendors allowed in our fixed locations-in our current ordinance, only 1 vendor is allowed at each of 6 locations.

I'd like to propose up to 4 vendors at Riverside, 2 at Outside Stadium/nettleton Ave, 2 at swazey, 2 at winnekenni (1 would be inside park), 2 at GAR Park, 1 at Bradford common.

Additionally, 1 vendor at Plug Pond and 1 vendor at Riverfront Park.

Please let us know if you have any specific concerns or thoughts about these proposed changes-I'm hoping to get a rough draft to Solicitor Mead soon so she can finesse it for City Council consideration.

Thank you!

Devan
she/her

City Councilor for Haverhill's Ward 3
(401)499-3583

The information contained herein is confidential and may be protected by the attorney-client and/or other applicable privilege(s). It is intended only for the named recipient(s). If you are neither an intended recipient nor a person responsible for delivery to a recipient, you are hereby notified that any unauthorized use, dissemination, distribution or reproduction of the contents hereof is strictly prohibited and may be unlawful.

If you have received the above transmittal in error, please delete the message and any attachment(s) hereto from your e-mail system and notify us immediately.

From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Tuesday, May 26, 2026 5:51:35 PM
To: Lisa Mead <lisa@mtclawyers.com>
Subject: Vendor ordinance update?

Hi Lisa!

I didn't receive anything last week regarding the fixed location vendor ordinance updates?

When can I expect it?

Thanks!
Devan

Get [Outlook for iOS](#)

From: Aileen Bartlett <aileen@mtclawyers.com>
Sent: Wednesday, May 27, 2026 2:55 PM
To: Devan Ferreira <DFerreira@haverhillma.gov>
Cc: Lisa Mead <lisa@mtclawyers.com>
Subject: Re: Vendor ordinance update?

Warning! External Email: Exercise caution when opening attachments or clicking on any links

Hi Councilor Ferreira,

As requested, we drafted an amended ordinance updating the fixed location vendor provisions. I've incorporated the changes reflected in the Word document you provided, and attached both a blackline and clean version for your review.

In § 191-11(A), I added language to ensure that vendors in the same area sell different types of items, as noted. I also added a requirement in § 191-9(A) that applicants submit a proposed menu with their applications to help facilitate that determination. In addition, I added a new subsection D clarifying that vendors are subject to any rules, regulations, permitting requirements, and mapped locations established by the City Clerk's Office.

Regarding your comment on nonprofits, I revised the definition of "fixed location vendor" in § 191-8 to exclude nonprofits and youth sports organizations. If the intent is instead to include those entities within the ordinance, I can revise that language accordingly. Please let me know.

With respect to Riverfront Park, the separate Food Truck ordinance (§ 191-30) currently prohibits food trucks within the Central Business District, so I added a note clarifying that. The Mayor's office expressed concern about competition with neighboring brick-and-mortar establishments, so language was added addressing the sale of different items from nearby restaurants.

Regarding the Winnekenni area, the Mayor's office, in consultation with the Recreation Director, expressed concern about vendor placement within the park and about adding another vendor given upcoming construction and requested that the area be kept to one vendor. The Mayor's office also suggested revisions to § 191-11(B) to ease administrative burden in the Clerk's office, including providing preference to the earliest qualified applicant based on the City Clerk's date stamp and reducing the waiting list retention period from two years to one year.

Please let me know if you have any questions, additional revisions, or would like to discuss further.

Best,
Aileen



Aileen C. Bartlett
Mead, Talerman & Costa, LLC
227 Union Street, New Bedford, Massachusetts 02740
Phone (978) 463-7700
Direct (978) 572-2199
aileen@mtclawyers.com - www.mtclawyers.com

Lori Robertson

From: Devan Ferreira
Sent: Tuesday, July 14, 2026 3:50 PM
To: Lori Robertson
Subject: Fw: Vendor ordinance update?
Attachments: Fixed Vendor Ordinance black line.docx; Fixed Vendor Ordinance clean.docx

And these too?!

Devan Ferreira

she/her
City Councilor for Haverhill's Ward 3
(401)499-3583

From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Thursday, 28 May 2026 10:39:43
To: Christine Lindberg <clindberg@haverhillma.gov>; Mayor <mayor@haverhillma.gov>
Subject: Fw: Vendor ordinance update?

Hoping this can be placed on the June 2nd to be placed on file? Just chatted with Effie, fyi. Let me know what you think?

Thanks!
Devan

Get [Outlook for iOS](#)

From: Devan Ferreira <DFerreira@haverhillma.gov>
Sent: Wednesday, May 27, 2026 9:17:55 PM
To: Jacki Byerley <JByerley@HaverhillMa.gov>; Kaitlin Wright <kwright@haverhillma.gov>; Rose Leonard-Flynn <rosself@haverhillma.gov>
Subject: Fw: Vendor ordinance update?

Hi Jacki and Kaitlin/Rose!

Attached are the drafts for the update to the fixed location vendor ordinance, and below are the comments and suggestions from Solicitor Mead and the Mayor...

I'd love to place this ordinance on the agenda for our next meeting on June 2 to be placed on file? Deadline is Friday morning as usual. Let me know what you think!

Devan

Get [Outlook for iOS](#)



Document

CITY OF HAVERHILL

In Municipal Council

Ordered:

MUNICIPAL ORDINANCE

CHAPTER 191

AN ORDINANCE AMENDING ARTICLE IV
RELATING TO FIXED LOCATION VENDORS

BE IT ORDAINED by the City Council of the City of Haverhill that Chapter 191, Article IV Peddlers and Hawkers, Transient Vendors and Fixed Location Vendors of the Code of the City of Haverhill, as amended, being and is hereby further amended as follows:

§ 191-8. Definitions.

The following words shall for the purposes of this article have the following meanings, unless the context requires otherwise:

FIXED LOCATION VENDOR

Any person who, for himself or for another person, engages in the sale of goods, wares, merchandise, food or beverages at a fixed location which is carried on in any fixed or mobile cart, wagon or tables. The term shall not include bona fide nonprofit, civic, charitable, or youth organizations conducting occasional fundraising sales or events not operated as a continuous commercial vending activity.

HAWKER or PEDDLER

Any person who, for himself or for another person, travels by foot, automobile or any other type of conveyance from place to place, from house to house, or from street to street, taking or attempting to lease or take orders for retail sale of goods, wares, merchandise, or services. This shall include persons engaged in door-to-door sale for future delivery as defined by MGL c. 101, § 34.

SEASONAL PRODUCTS

Christmas trees, wreaths, baskets, blooming plants and cut flowers.

TRANSIENT VENDOR

Any person who, for himself or for another person, who engages in a temporary or transient business in the commonwealth selling goods, wares or merchandise, either in one locality or in traveling from place to place. Temporary or transient business shall mean any

exhibition and sale of goods, wares or merchandise which is carried on in any tent, booth, building or other structure, unless such place is open for business during usual business hours for a period of at least 12 consecutive months.

§ 191-9 Licenses.

It shall be unlawful for any person, firm or corporation to engage in the business of hawker/peddler without first having secured a state license or a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor without first having secured a state license and a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of fixed location vendor without first having secured a license from the City.

- A. Application. Applications for permission to use City property or to sell on City streets, sidewalks, public ways or in any public space shall be made to the City Clerk and shall be subject to the approval of the City Council. Applications shall state thereon the kind of merchandise to be sold, the proposed location of the business, the dates and times of operation and the permanent address and telephone number of the vendor, **and, in the case of any fixed-location vendor selling food or beverage items, a detailed menu or list of all proposed food and beverage items to be sold, including any proposed substitutions or seasonal variations.**
- B. Fee. The fee for a hawker/peddler license shall be \$62, unless the applicant has a state license in which case there shall be no fee. The fee for a transient vendor or a fixed location vendor shall be \$100 for a period of less than 30 days or \$300 for a period exceeding 30 days.
- C. Prior approvals. Before such a permit is issued, approval shall be obtained from the Chief of Police (registration and traffic safety, etc.); Building Inspector (signs, zoning, regulations, etc.); Wiring Inspector (lights, etc.); Recreation Director (use of Riverside Park and area in front of or on the side of Haverhill Stadium); Fire Inspector; and Health Department (food or beverage sales).
- D. Hours of operation. No sales activity shall be allowed before 9:00 a.m. and after 9:00 p.m. without the prior permission of the City Council.
- E. The sale of silly string or similar type goods or snap caps and stink bombs or similar explosives or any facsimile cigarettes during a parade or public event in the City of Haverhill is prohibited.
- F. A permit to sell may only be used by the person whose name appears on the City license, unless an employee is working under a licensed vendor and obtains a separate employee license. The fee for such an employee license shall be \$25, and the employee license shall run with the term of the licensed vendor.
- G. No transient vendor or fixed location vendor license shall be issued without the applicant indemnifying the City of Haverhill from any and all claims arising out of the maintenance of such a location and by placing on file a sidewalk obstruction bond in the amount of \$5,000 as

set forth in § 222-46 of this Code.

- H. All permits issued under this section may be effective for up to one year, commencing on January 1 and with an expiration date of December 31 of the year in which the permit is granted. Any license which is not renewed for the upcoming year by December 1 of the prior year may be subject to reassignment in accordance with the provisions of § 191-11B.
- I. Any person, firm or corporation engaging in the business of hawker/peddler within the City of Haverhill who is operating on the basis of a state license solely shall register with the Chief of Police at least 24 hours prior to conducting business and shall provide the kind of merchandise to be sold, the proposed areas and locations in which they will engage in their business, the dates and times of operation, the permanent address and telephone number of the vendor, and a copy of a valid state hawker/peddler license.
- J. Door-to-door sales.
 - (1) Any person, firm or corporation engaging in the business of door-to-door sales for future delivery shall comply with all provisions of M.G.L. c. 101, § 34. The Chief of Police shall be the designated official for the registration required by M.G.L. c. 101, § 34. The Chief of Police may make reasonable rules and regulations for such registrations and persons engaged in the business of door-to-door sales consistent with M.G.L. c. 101, § 34. A registration fee of \$100 shall be paid to the Police Department for each person so registered.
 - (2) Signs prohibiting solicitation; trespass.
 - (a) It shall be unlawful for any salesperson to enter the premises or remain on property displaying a "No Trespassing" or "No Solicitation" sign.
 - (b) It shall be unlawful for any salesperson to ignore a no-solicitation directive or remain on private property after a resident or resident's representative has indicated that the salesperson is not welcome.
 - (3) Do Not Knock Registry.
 - (a) The Police Department shall prepare a list of addresses of those premises where the owner and/or occupant has notified the Chief of Police, or his designee, that a door-to-door salesperson, hawker, peddler or any other person, including corporate or business entities, wishing to sell wares or services in all districts, in locations which are not stationary, are not permitted on the premises (hereinafter referred to as the "Do Not Knock Registry"). Notification shall be by completion of a form available at the Police Department.
 - (b) The Chief of Police or designee shall distribute the current Do Not Knock Registry to a person or entity licensed under this section at the time of issuance of the license. The licensee shall not peddle, canvass, or conduct door-to-door

sales at any premises identified on the then current Do Not Knock Registry.

- (4) Exemptions. The above provisions shall not apply to any person who goes door to door for the purpose of advocating any religious, political, social or other position or belief protected by the federal or state constitution, the sale or delivery of newspapers, any corporation organized for charitable purposes, such as schools or the Boy/Girl Scouts, and candidates for public office.
- (5) Penalties. Any canvasser, peddler, itinerant vender or owner or employee of a door-to-door sales enterprise who violates any provision of this section shall be:
- (6) Subject to a fine of \$300 per offense; and/or
- (7) Subject to a one-year revocation of any license issued by the Chief of Police.

§ 191-10 Seasonal products; fee.

It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor or fixed location vendor for the sale of seasonal products without first having secured a City license pursuant to the requirements of § 191-9. The fee for a license to sell seasonal products shall be \$200.

§ 191-11. Permitted fixed locations; exceptions.

A. Permitted locations. Selling within the City of Haverhill of products licensed under § 191-9 by fixed-location vendors shall only be permitted within the boundaries of these the following areas; provided, however, that at any location where more than one vendor is authorized, no two vendors shall principally sell the same primary product or food item.

- (1) Winnekenni area, Route 110: one vendor.
- (2) Bradford Common: one vendor.*
- (3) Riverside Park: ~~one vendor.~~ four vendors.
- (4) Washington Square: one vendor.
- (5) GAR Park: ~~one vendor.~~ two vendors.
- (6) Swasey Park: ~~one vendor.~~ two vendors.
- (7) Outside Haverhill Stadium at Lincoln and Nettleton Avenues: ~~one vendor.~~ two vendors.

(8) Riverfront Park: one vendor, provided, however, that no food trucks shall be permitted as provided in § 191-30, and that any vendor operating at Riverfront Park

shall not principally sell food or beverage items that are substantially similar to the primary menu offerings of existing fixed-location food service establishments located within the Central Business District, as defined by § 11-70 of this Code.

(9) Plug Pond: one vendor.

~~(8)~~ (10) Other areas as approved by the City Council.

* An enclosed cart 8.5 x 12 feet, excluding hitch, is allowed at the Bradford site only. Any party desiring a similar type of cart at any other location must petition the City Council for permission

B. Vacated locations. Persons who wish to be considered for a permit for one of the above locations, when vacated, may notify the City Clerk, who shall maintain a waiting list, including the person's name, address and a date of receipt. Interested parties shall be notified when a location is vacated and shall have 30 days to apply for issuance of a permit. If more than one person applies for a particular site, preference shall be given to the earliest qualified applicant, as determined by the City Council date stamp of the application received by the City Clerk. If no person has applied for a permit within 30 days or if there are no persons on the waiting list, the location shall be granted to the earliest qualified applicant, if the City Council so determines. The waiting list must be renewed every two years, with those applicants on the list to be notified by the City Clerk by regular U.S. mail to renew the application by November 1. Persons may be permitted for more than one location if allowed by the City Council. Any person with a valid permit who fails to operate his/her location for a period of less than four days per calendar week, Sunday through Saturday, weather permitting, from Memorial Day through Labor Day, may have said permit be subject to revocation by the City Council, after notice and hearing.

C. Exceptions. The following areas shall not be permitted to have any type of selling by either a transient vendor or hawker/peddler:

(1) All municipal parking areas.

~~(2) Plug Pond.~~

~~(3)~~ (2) Meadowbrook Conservation Area.

~~(4)~~ (3) Within 300 feet of any public school building, notwithstanding the provisions of § 191-2.

~~(5)~~ (4) Within 25 feet of any parade route commencing 1/2 hour prior to the start of said parade, except for those permitted to sell in accordance with § 191-12.

(D) Compliance with City Clerk Regulations. All approved vendors shall comply with all rules, regulations, permitting requirements, and mapping locations as established by the City Clerk's Office relating to fixed-location vendors, as the same may be amended from

time to time.

§ 191-12 Special events.

- A. Fixed location vendors shall also be permitted to operate during special events, provided that a notification of intent to operate during the special event is filed with the event director or committee at least 30 days prior to said special event and the event director or committee approves the specific location. The event director or committee shall not unreasonably withhold approval for operation during a special event; however, the event director or committee shall have exclusive jurisdiction over the assigned specific location at which any person(s) may operate.[1]

§ 191-13 Fraud; violations and penalties.

- A. Fraud. Any licensed transient vendor or peddler or hawker who shall be guilty of any fraud, cheating or misrepresentation, whether through himself or through an employee, while acting in the City, or who shall barter, sell or peddle any goods or merchandise or wares other than those specified in his application for a license or who shall fail to comply with the conditions and restrictions contained herein shall be deemed guilty of a violation of this article.
- B. Penalty. Any person, firm or corporation violating any provision of this article shall be fined not less than \$50 nor more than \$250 for each offense, and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues.



Document

CITY OF HAVERHILL

In Municipal Council

Ordered:

MUNICIPAL ORDINANCE

CHAPTER 191

**AN ORDINANCE AMENDING ARTICLE IV
RELATING TO FIXED LOCATION VENDORS**

BE IT ORDAINED by the City Council of the City of Haverhill that Chapter 191, Article IV Peddlers and Hawkers, Transient Vendors and Fixed Location Vendors of the Code of the City of Haverhill, as amended, being and is hereby further amended as follows:

§ 191-8. Definitions.

The following words shall for the purposes of this article have the following meanings, unless the context requires otherwise:

FIXED LOCATION VENDOR

Any person who, for himself or for another person, engages in the sale of goods, wares, merchandise, food or beverages at a fixed location which is carried on in any fixed or mobile cart, wagon or tables. The term shall not include bona fide nonprofit, civic, charitable, or youth organizations conducting occasional fundraising sales or events not operated as a continuous commercial vending activity.

HAWKER or PEDDLER

Any person who, for himself or for another person, travels by foot, automobile or any other type of conveyance from place to place, from house to house, or from street to street, taking or attempting to lease or take orders for retail sale of goods, wares, merchandise, or services. This shall include persons engaged in door-to-door sale for future delivery as defined by MGL c. 101, § 34.

SEASONAL PRODUCTS

Christmas trees, wreaths, baskets, blooming plants and cut flowers.

TRANSIENT VENDOR

Any person who, for himself or for another person, who engages in a temporary or transient business in the commonwealth selling goods, wares or merchandise, either in one locality or in traveling from place to place. Temporary or transient business shall mean any

exhibition and sale of goods, wares or merchandise which is carried on in any tent, booth, building or other structure, unless such place is open for business during usual business hours for a period of at least 12 consecutive months.

§ 191-9 Licenses.

It shall be unlawful for any person, firm or corporation to engage in the business of hawker/peddler without first having secured a state license or a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor without first having secured a state license and a license from the City. It shall be unlawful for any person, firm or corporation to engage in the business of fixed location vendor without first having secured a license from the City.

- A. Application. Applications for permission to use City property or to sell on City streets, sidewalks, public ways or in any public space shall be made to the City Clerk and shall be subject to the approval of the City Council. Applications shall state thereon the kind of merchandise to be sold, the proposed location of the business, the dates and times of operation and the permanent address and telephone number of the vendor, and, in the case of any fixed-location vendor selling food or beverage items, a detailed menu or list of all proposed food and beverage items to be sold, including any proposed substitutions or seasonal variations.
- B. Fee. The fee for a hawker/peddler license shall be \$62, unless the applicant has a state license in which case there shall be no fee. The fee for a transient vendor or a fixed location vendor shall be \$100 for a period of less than 30 days or \$300 for a period exceeding 30 days.
- C. Prior approvals. Before such a permit is issued, approval shall be obtained from the Chief of Police (registration and traffic safety, etc.); Building Inspector (signs, zoning, regulations, etc.); Wiring Inspector (lights, etc.); Recreation Director (use of Riverside Park and area in front of or on the side of Haverhill Stadium); Fire Inspector; and Health Department (food or beverage sales).
- D. Hours of operation. No sales activity shall be allowed before 9:00 a.m. and after 9:00 p.m. without the prior permission of the City Council.
- E. The sale of silly string or similar type goods or snap caps and stink bombs or similar explosives or any facsimile cigarettes during a parade or public event in the City of Haverhill is prohibited.
- F. A permit to sell may only be used by the person whose name appears on the City license, unless an employee is working under a licensed vendor and obtains a separate employee license. The fee for such an employee license shall be \$25, and the employee license shall run with the term of the licensed vendor.
- G. No transient vendor or fixed location vendor license shall be issued without the applicant indemnifying the City of Haverhill from any and all claims arising out of the maintenance of such a location and by placing on file a sidewalk obstruction bond in the amount of \$5,000 as set forth in § 222-46 of this Code.

- H. All permits issued under this section may be effective for up to one year, commencing on January 1 and with an expiration date of December 31 of the year in which the permit is granted. Any license which is not renewed for the upcoming year by December 1 of the prior year may be subject to reassignment in accordance with the provisions of § 191-11B.
- I. Any person, firm or corporation engaging in the business of hawker/peddler within the City of Haverhill who is operating on the basis of a state license solely shall register with the Chief of Police at least 24 hours prior to conducting business and shall provide the kind of merchandise to be sold, the proposed areas and locations in which they will engage in their business, the dates and times of operation, the permanent address and telephone number of the vendor, and a copy of a valid state hawker/peddler license.
- J. Door-to-door sales.
- (1) Any person, firm or corporation engaging in the business of door-to-door sales for future delivery shall comply with all provisions of M.G.L. c. 101, § 34. The Chief of Police shall be the designated official for the registration required by M.G.L. c. 101, § 34. The Chief of Police may make reasonable rules and regulations for such registrations and persons engaged in the business of door-to-door sales consistent with M.G.L. c. 101, § 34. A registration fee of \$100 shall be paid to the Police Department for each person so registered.
 - (2) Signs prohibiting solicitation; trespass.
 - (a) It shall be unlawful for any salesperson to enter the premises or remain on property displaying a "No Trespassing" or "No Solicitation" sign.
 - (b) It shall be unlawful for any salesperson to ignore a no-solicitation directive or remain on private property after a resident or resident's representative has indicated that the salesperson is not welcome.
 - (3) Do Not Knock Registry.
 - (a) The Police Department shall prepare a list of addresses of those premises where the owner and/or occupant has notified the Chief of Police, or his designee, that a door-to-door salesperson, hawker, peddler or any other person, including corporate or business entities, wishing to sell wares or services in all districts, in locations which are not stationary, are not permitted on the premises (hereinafter referred to as the "Do Not Knock Registry"). Notification shall be by completion of a form available at the Police Department.
 - (b) The Chief of Police or designee shall distribute the current Do Not Knock Registry to a person or entity licensed under this section at the time of issuance of the license. The licensee shall not peddle, canvass, or conduct door-to-door sales at any premises identified on the then current Do Not Knock Registry.

- (4) Exemptions. The above provisions shall not apply to any person who goes door to door for the purpose of advocating any religious, political, social or other position or belief protected by the federal or state constitution, the sale or delivery of newspapers, any corporation organized for charitable purposes, such as schools or the Boy/Girl Scouts, and candidates for public office.
- (5) Penalties. Any canvasser, peddler, itinerant vender or owner or employee of a door-to-door sales enterprise who violates any provision of this section shall be:
- (6) Subject to a fine of \$300 per offense; and/or
- (7) Subject to a one-year revocation of any license issued by the Chief of Police.

§ 191-10 Seasonal products; fee.

It shall be unlawful for any person, firm or corporation to engage in the business of transient vendor or fixed location vendor for the sale of seasonal products without first having secured a City license pursuant to the requirements of § 191-9. The fee for a license to sell seasonal products shall be \$200.

§ 191-11. Permitted fixed locations; exceptions.

A. Permitted locations. Selling within the City of Haverhill of products licensed under § 191-9 by fixed-location vendors shall only be permitted within the boundaries of the following areas; provided, however, that at any location where more than one vendor is authorized, no two vendors shall principally sell the same primary product or food item.

- (1) Winnekenni area, Route 110: one vendor.
- (2) Bradford Common: one vendor.*
- (3) Riverside Park: four vendors.
- (4) Washington Square: one vendor.
- (5) GAR Park: two vendors.
- (6) Swasey Park: two vendors.
- (7) Outside Haverhill Stadium at Lincoln and Nettleton Avenues: two vendors.
- (8) Riverfront Park: one vendor, provided, however, that no food trucks shall be permitted as provided in § 191-30, and that any vendor operating at Riverfront Park shall not principally sell food or beverage items that are substantially similar to the primary menu offerings of existing fixed-location food service establishments located

within the Central Business District, as defined by § 11-70 of this Code.

(9) Plug Pond: one vendor.

(10) Other areas as approved by the City Council.

* An enclosed cart 8.5 x 12 feet, excluding hitch, is allowed at the Bradford site only. Any party desiring a similar type of cart at any other location must petition the City Council for permission

B. Vacated locations. Persons who wish to be considered for a permit for one of the above locations, when vacated, may notify the City Clerk, who shall maintain a waiting list, including the person's name, address and a date of receipt. Interested parties shall be notified when a location is vacated and shall have 30 days to apply for issuance of a permit. If more than one person applies for a particular site, preference shall be given to the earliest qualified applicant, as determined by the date stamp of the application received by the City Clerk. If no person has applied for a permit within 30 days or if there are no persons on the waiting list, the location shall be granted to the earliest qualified applicant, if the City Council so determines. The waiting list must be renewed every year, with those applicants on the list to be notified by the City Clerk by regular U.S. mail to renew the application by November 1. Persons may be permitted for more than one location if allowed by the City Council. Any person with a valid permit who fails to operate his/her location for a period of less than four days per calendar week, Sunday through Saturday, weather permitting, from Memorial Day through Labor Day, may have said permit be subject to revocation by the City Council, after notice and hearing.

C. Exceptions. The following areas shall not be permitted to have any type of selling by either a transient vendor or hawker/peddler:

(1) All municipal parking areas.

(2) Meadowbrook Conservation Area.

(3) Within 300 feet of any public school building, notwithstanding the provisions of § 191-2.

(4) Within 25 feet of any parade route commencing 1/2 hour prior to the start of said parade, except for those permitted to sell in accordance with § 191-12.

(D) Compliance with City Clerk Regulations. All approved vendors shall comply with all rules, regulations, permitting requirements, and mapping locations as established by the City Clerk's Office relating to fixed-location vendors, as the same may be amended from time to time.

§ 191-12 Special events.

A. Fixed location vendors shall also be permitted to operate during special events, provided that a notification of intent to operate during the special event is filed with the event director

or committee at least 30 days prior to said special event and the event director or committee approves the specific location. The event director or committee shall not unreasonably withhold approval for operation during a special event; however, the event director or committee shall have exclusive jurisdiction over the assigned specific location at which any person(s) may operate.[1]

§ 191-13 Fraud; violations and penalties.

- A. Fraud. Any licensed transient vendor or peddler or hawker who shall be guilty of any fraud, cheating or misrepresentation, whether through himself or through an employee, while acting in the City, or who shall barter, sell or peddle any goods or merchandise or wares other than those specified in his application for a license or who shall fail to comply with the conditions and restrictions contained herein shall be deemed guilty of a violation of this article.
- B. Penalty. Any person, firm or corporation violating any provision of this article shall be fined not less than \$50 nor more than \$250 for each offense, and a separate offense shall be deemed committed on each day during or on which a violation occurs or continues.